



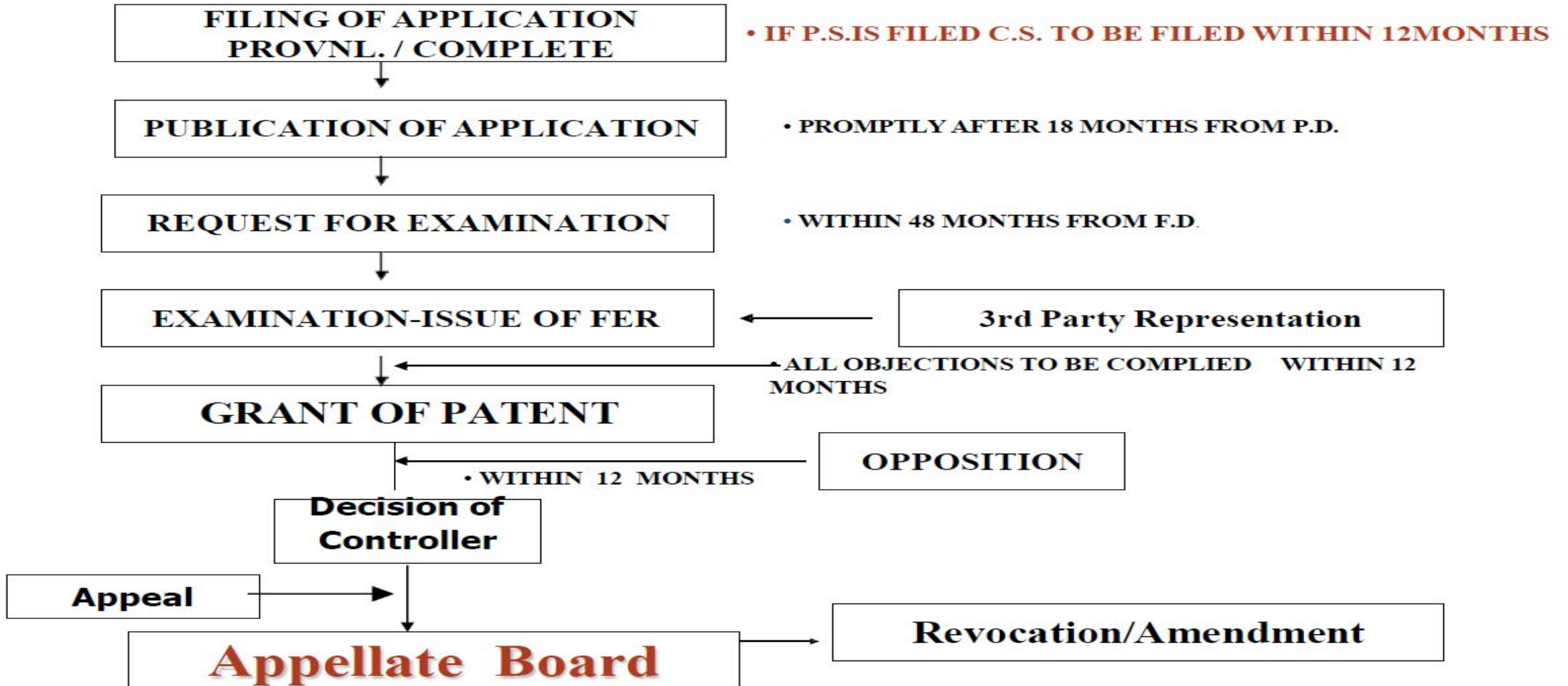
CSE332

INDUSTRY ETHICS AND LEGAL ISSUES



-Patents

Stages from filing to grant of a patent



Publication and Examination

Rule 24-B: Examination of application

Examination request for divisional application:

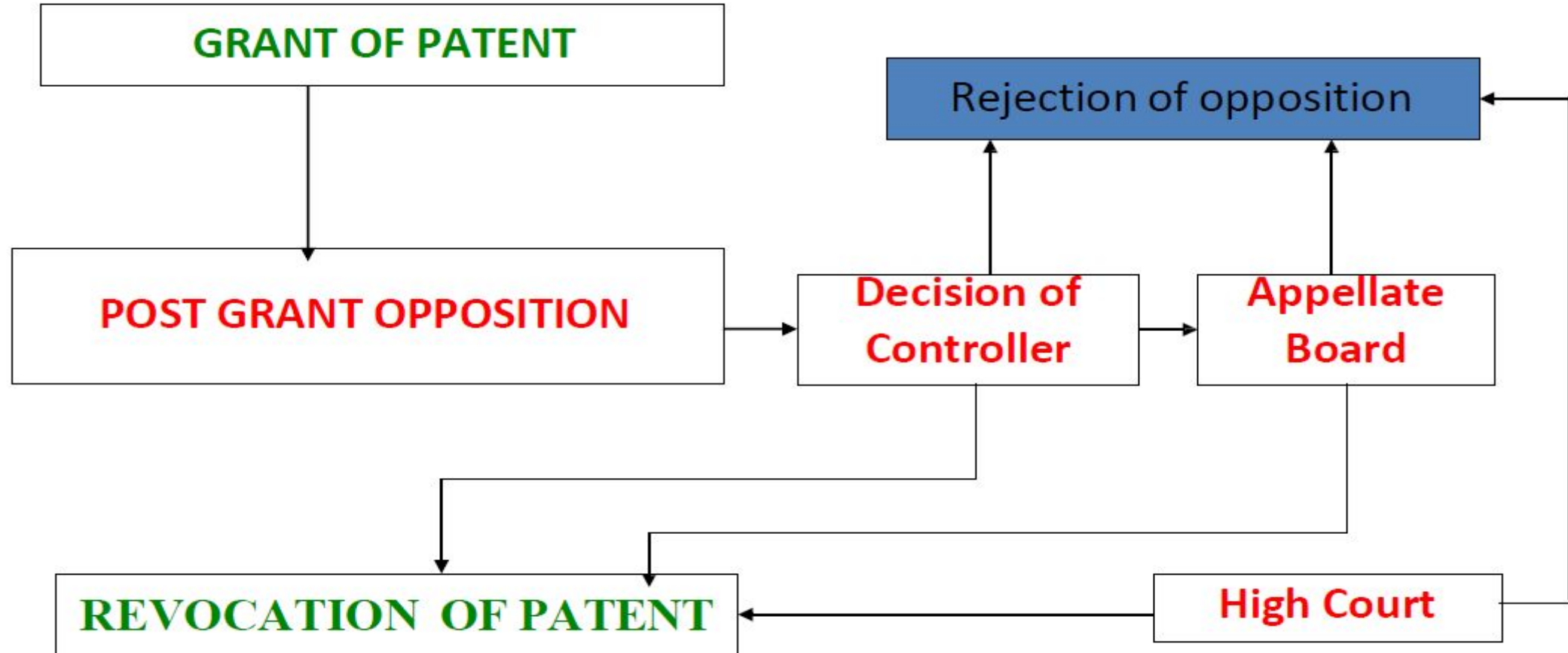
1. **48 months** from filing date or **priority date**, whichever or **6 months** from further application filing.
2. Controller refers to Examiner **within 1 month** from publication or examination request receipt date whichever is **earlier**.
3. Examiner prepares report **in 1-3 months**.

Publication and Examination

Rule 24-B: Examination of application (contd.)

1. Controller disposes examiner's report within **one month of receipt**.
2. First Examination Report sent **within 6 months** of examination request or publication, whichever is **later**.
3. Third-party requesters receive intimation upon filing examination request.
4. Applicant **complies** with requirements within **12 months** of objection.

A PROCEDURE FROM FILING TO GRANT OF PATENT (Cont.)





IMPORTANT FEES IN DIFFERENT PROCEEDINGS

Proceeding	Individual (₹)	Legal Entity (₹)
Application for Grant of Patent	1,000	4,000
Request for Examination of Application	2,500	10,000
Request for Publication	2,500	10,000
Substitution of Applicant	500	2,000
Notice of Opposition	1,500	6,000
Restoration of Lapsed Patent	1,500	6,000
Renewal Fees (for 20 years)	48,000	192,000

Note: Professional Patent Drafting costs approximately ₹30,000

DUTIES OF PATENTEE

Maintenance of the patent

Pay renewal fees

Every year till the end of the term

Time limit:

before end of the preceeding year (6months extn. Available)

Working of the patents:

Inventions are to be worked in India on commercial scale

Failing which compulsory licence may be issued



Patent Infringement

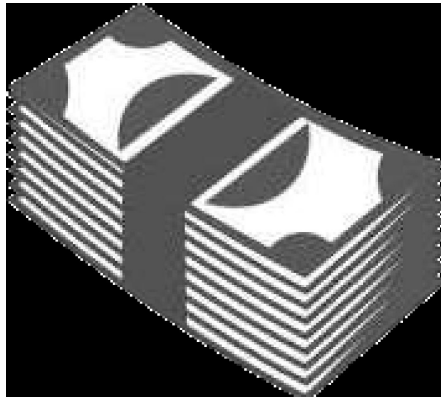
1. Demand the infringer stop & pay damages for past infringement.
2. Offer a “Royalty”
3. Ignore the infringement or postpone action.
4. File a patent infringement lawsuit in federal court

Litigation vs Licensing

If the objective is to stop a competitor from offering a product that infringes one's patent.

If the objective is to obtain royalty for the use of one's invention.

Alternatives To Litigation



Litigations are costly, timely, & disruptive
Alternative dispute resolutions (ADR) include **Mediation & Arbitration**



Trade-Related Aspects of Intellectual Property Rights(TRIPS) in the World Trade Organization Compliance

TRIPS Agreement elevated **IPR protection** internationally binding.

India signed TRIPS Agreement **in 1995** and implementing required changes.

India enacted **TRIPS-compliant IP laws** for trademarks, copyright, designs, GI, and integrated circuits.



MCQ Questions for revision

1. what is the maximum time allowed for filing an examination request for a divisional application from the filing date or priority date?
 - A. 12 months
 - B. 24 months
 - C. 48 months
 - D. 60 months
2. After the application is referred to the examiner, within how many months is the examiner required to prepare the report?

A. 1-3 months

3. Once the examiner's report is received by the controller, what is the maximum time given to the controller to dispose of it?
 - A. 1 week
 - B. 1 month
 - C. 3 months
 - D. 6 months

4. How long does the applicant have to comply with the examiner's objections after receiving the First Examination Report?
 - A. 6 months
 - B. 9 months
 - C. 12 months
 - D. 18 months

5. What is the approximate cost mentioned for professional patent drafting?
 - A. ₹10,000
 - B. ₹20,000
 - C. ₹30,000
 - D. ₹40,000

6. Which of the following is a primary duty of a patentee concerning patent maintenance?
 - A. Renew the patent every five years
 - B. Pay renewal fees every year till the end of the term
 - C. Submit an annual usage report
 - D. Refile the patent application every year

7. What consequence does the PPT mention if a patented invention is not worked on a commercial scale in India?
 - A. The patent is automatically canceled
 - B. The patentee loses all exclusive rights
 - C. A compulsory licence may be issued
 - D. The patent is transferred to the government

8. What consequence does the PPT mention if a patented invention is not worked on a commercial scale in India?
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9. What is the primary difference between litigation and licensing as approaches to addressing patent infringement ?
 - A. Litigation is generally less expensive than licensing
 - B. Litigation aims to stop a competitor from offering an infringing product, while licensing is aimed at obtaining royalties
 - C. Licensing involves court proceedings, whereas litigation does not
 - D. Licensing is used only for international patent disputes

10. Which international agreement mentioned in the PPT has elevated intellectual property rights protection and is binding on India?
 - A. Berne Convention
 - B. Paris Convention
 - C. TRIPS Agreement
 - D. WIPO Convention



1. Answer: C. 48 months
2. Answer: A. 1–3 months
3. Answer: B. 1 month
4. Answer: C. 12 months
5. Answer: C. ₹30,000
6. Answer: B. Pay renewal fees every year till the end of the term
7. Answer: C. A compulsory licence may be issued
8. Answer: D. Seeking criminal prosecution against the infringer
9. Answer: B. Litigation aims to stop a competitor from offering an infringing product, while licensing is aimed at obtaining royalty
10. Answer: C. TRIPS Agreement



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GRADE **A++**